

(4) Despite subsection (1), the provisions of this Act set out in that subsection apply with respect to a rental unit described in paragraph 1 of that subsection if the tenant occupying the rental unit pays rent to a landlord other than the Government of Canada or an agency of the Government of Canada. 2020, c. 16, Sched. 3, s. 12 (2).

Same, subs. (1), par. 2

(5) Despite subsection (1), the provisions of this Act set out in that subsection apply with respect to a rental unit described in paragraph 2 of that subsection if the tenant occupying the rental unit pays rent to a landlord other than a service manager or local housing corporation as defined in the *Housing Services Act, 2011* or an agency of either of them. 2006, c. 17, s. 7 (5); 2011, c. 6, Sched. 1, s. 188 (2); 2020, c. 16, Sched. 4, s. 3 (2).

Same, subs. (1), par. 5

(6) Despite subsection (1), the provisions of this Act set out in that subsection apply with respect to a rent increase for rental units described in paragraph 5 of that subsection if there is a council or association representing the residents of those rental units and there has not been consultation with the council or association respecting the increase. 2006, c. 17, s. 7 (6).

▼ Section Amendments with date in force (d/m/y)

Rent geared-to-income

8 (1) If a tenant pays rent for a rental unit in an amount geared-to-income due to public funding and the rental unit is not a rental unit described in paragraph 1, 2, 3 or 4 of subsection 7 (1), paragraph 6 of subsection 30 (1) and Part VII do not apply to an increase in the amount geared-to-income paid by the tenant. 2006, c. 17, s. 8 (1).

Same, assignment, subletting

(2) Sections 95 to 99, subsection 100 (2), sections 101 and 102, subsection 104 (3) and section 143 do not apply to a tenant described in subsection (1). 2006, c. 17, s. 8 (2).

Application to determine issues

9 (1) A landlord or a tenant may apply to the Board for an order determining,

- (a) whether this Act or any provision of it applies to a particular rental unit or residential complex;
- (b) any other prescribed matter. 2006, c. 17, s. 9 (1).

Order

- (2) On the application, the Board shall make findings on the issue as prescribed and shall make the appropriate order. 2006, c. 17, s. 9 (2).

PART II TENANCY AGREEMENTS

Selecting prospective tenants

10 In selecting prospective tenants, landlords may use, in the manner prescribed in the regulations made under the *Human Rights Code*, income information, credit checks, credit references, rental history, guarantees, or other similar business practices as prescribed in those regulations. 2006, c. 17, s. 10.

Information to be provided by landlord

11 (1) If a tenancy agreement is entered into, the landlord shall provide to the tenant information relating to the rights and responsibilities of landlords and tenants, the role of the Board and how to contact the Board. 2006, c. 17, s. 11 (1).

Form

- (2) The information shall be provided to the tenant on or before the date the tenancy begins in a form approved by the Board. 2006, c. 17, s. 11 (2).

Non-application

- (3) This section does not apply with respect to a tenancy if,
 - (a) the tenancy begins on or after the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent; and
 - (b) section 12.1 applies with respect to the tenancy agreement entered into in respect of the tenancy. 2020, c. 16, Sched. 4, s. 4.

Transition, subs. (3)

(4) Subsection (3) applies with respect to a tenancy agreement referred to in that subsection even if the agreement was entered into before the day the *Protecting Tenants and Strengthening Community Housing Act, 2020* receives Royal Assent. 2020, c. 16, Sched. 4, s. 4.

▼ Section Amendments with date in force (d/m/y)

Tenancy agreement

Name and address in written agreement

12 (1) Every written tenancy agreement entered into on or after June 17, 1998 shall set out the legal name and address of the landlord to be used for the purpose of giving notices or other documents under this Act. 2006, c. 17, s. 12 (1).

Copy of tenancy agreement

(2) If a tenancy agreement entered into on or after June 17, 1998 is in writing, the landlord shall give a copy of the agreement, signed by the landlord and the tenant, to the tenant within 21 days after the tenant signs it and gives it to the landlord. 2006, c. 17, s. 12 (2).

Notice if agreement not in writing

(3) If a tenancy agreement entered into on or after June 17, 1998 is not in writing, the landlord shall, within 21 days after the tenancy begins, give to the tenant written notice of the legal name and address of the landlord to be used for giving notices and other documents under this Act. 2006, c. 17, s. 12 (3).

Failure to comply

(4) Until a landlord has complied with subsections (1) and (2), or with subsection (3), as the case may be,

(a) the tenant's obligation to pay rent is suspended; and

(b) the landlord shall not require the tenant to pay rent. 2006, c. 17, s. 12 (4).

After compliance

(5) After the landlord has complied with subsections (1) and (2), or with subsection (3),

as the case may be, the landlord may require the tenant to pay any rent withheld by the tenant under subsection (4). 2006, c. 17, s. 12 (5).

Tenancy agreement in respect of tenancy of a prescribed class

12.1 (1) Every tenancy agreement that is entered into in respect of a tenancy of a prescribed class on or after the date prescribed for that class of tenancies shall comply with the following requirements:

1. The tenancy agreement shall be in the form prescribed for that class of tenancies.
2. The tenancy agreement shall comply with the requirements prescribed for that class of tenancies. 2017, c. 13, s. 5.

Time of signature

(2) Every tenancy agreement referred to in subsection (1) shall be signed by the landlord and the tenant on or before the day the tenant is entitled to occupy the rental unit under the tenancy agreement. 2017, c. 13, s. 5.

Non-application

(3) This section does not apply with respect to a tenancy agreement entered into in respect of a tenancy of a prescribed class referred to in subsection (1), if the tenancy agreement is entered into before the applicable prescribed date referred to in that subsection, and even if the tenancy agreement is renewed or deemed to be renewed under section 38 on or after that date. 2017, c. 13, s. 5.

Application of subs. (5) to (10)

(4) Subsections (5) to (10) apply with respect to a tenancy agreement referred to in subsection (1) that does not comply with that subsection. 2017, c. 13, s. 5.

Demand for proposed tenancy agreement that complies with subs. (1)

(5) The tenant of a rental unit who is a party to a tenancy agreement described in subsection (4) may, once during the tenancy, demand in writing that the landlord provide to the tenant, for the tenant's signature, a proposed tenancy agreement that,

- (a) complies with subsection (1);
- (b) is for the occupancy of the same rental unit; and
- (c) is signed by the landlord. 2017, c. 13, s. 5.

Withholding of rent payments

(6) If at least 21 days have elapsed since the day the tenant made the demand and the landlord has not complied with the demand, the tenant may, subject to subsections (7) and (8), withhold rent payments that become due after the expiry of that 21-day period. 2017, c. 13, s. 5.

Same

(7) The maximum total amount of rent payments that a tenant may withhold under subsection (6) is an amount equal to one month's rent. 2017, c. 13, s. 5.

Same

(8) The tenant may not withhold rent payments under subsection (6) on or after the day the landlord complies with the demand. 2017, c. 13, s. 5.

Requirement to pay withheld rent payments

(9) The landlord may require the tenant to pay to the landlord any rent payment withheld under subsection (6) only if the landlord complies with the tenant's demand for a proposed tenancy agreement no later than 30 days after the date of the first rent payment withheld under that subsection. 2017, c. 13, s. 5.

Same

(10) The landlord may require the tenant to pay withheld rent payments under subsection (9) even if the tenant does not enter into the proposed tenancy agreement provided to the tenant by the landlord. 2017, c. 13, s. 5.

Tenancy agreement not void

(11) For greater certainty, a tenancy agreement is not void, voidable or unenforceable solely by reason of not complying with subsection (1) or (2). 2017, c. 13, s. 5.

Operation of s. 12 not affected

(12) For greater certainty, nothing in this section affects the operation of section 12. 2017, c. 13, s. 5.

▼ **Section Amendments with date in force (d/m/y)**

Commencement of tenancy

13 (1) The term or period of a tenancy begins on the day the tenant is entitled to occupy the rental unit under the tenancy agreement. 2006, c. 17, s. 13 (1).

Actual entry not required

(2) A tenancy agreement takes effect when the tenant is entitled to occupy the rental unit, whether or not the tenant actually occupies it. 2006, c. 17, s. 13 (2).

“No pet” provisions void

14 A provision in a tenancy agreement prohibiting the presence of animals in or about the residential complex is void. 2006, c. 17, s. 14.

Acceleration clause void

15 A provision in a tenancy agreement providing that all or part of the remaining rent for a term or period of a tenancy or a specific sum becomes due upon a default of the tenant in paying rent due or in carrying out an obligation is void. 2006, c. 17, s. 15.

Minimize losses

16 When a landlord or a tenant becomes liable to pay any amount as a result of a breach of a tenancy agreement, the person entitled to claim the amount has a duty to take reasonable steps to minimize the person’s losses. 2006, c. 17, s. 16.

Covenants interdependent

17 Except as otherwise provided in this Act, the common law rules respecting the effect of a serious, substantial or fundamental breach of a material covenant by one party to a contract on the obligation to perform of the other party apply with respect to tenancy agreements. 2006, c. 17, s. 17.

Covenants running with land

18 Covenants concerning things related to a rental unit or the residential complex in which it is located run with the land, whether or not the things are in existence at the time the covenants are made. 2006, c. 17, s. 18.

Frustrated contracts

19 The doctrine of frustration of contract and the *Frustrated Contracts Act* apply with respect to tenancy agreements. 2006, c. 17, s. 19.

PART III RESPONSIBILITIES OF LANDLORDS

Landlord's responsibility to repair

20 (1) A landlord is responsible for providing and maintaining a residential complex, including the rental units in it, in a good state of repair and fit for habitation and for complying with health, safety, housing and maintenance standards. 2006, c. 17, s. 20 (1).

Same

(2) Subsection (1) applies even if the tenant was aware of a state of non-repair or a contravention of a standard before entering into the tenancy agreement. 2006, c. 17, s. 20 (2).

Landlord's responsibility re services

21 (1) A landlord shall not at any time during a tenant's occupancy of a rental unit and before the day on which an order evicting the tenant is executed, withhold the reasonable supply of any vital service, care service or food that it is the landlord's obligation to supply under the tenancy agreement or deliberately interfere with the reasonable supply of any vital service, care service or food. 2006, c. 17, s. 21 (1).

Non-payment

(2) For the purposes of subsection (1), a landlord shall be deemed to have withheld the reasonable supply of a vital service, care service or food if the landlord is obligated to pay another person for the vital service, care service or food, the landlord fails to pay the required amount and, as a result of the non-payment, the

other person withholds the reasonable supply of the vital service, care service or food. 2006, c. 17, s. 21 (2).

Landlord not to interfere with reasonable enjoyment

22 A landlord shall not at any time during a tenant's occupancy of a rental unit and before the day on which an order evicting the tenant is executed substantially interfere with the reasonable enjoyment of the rental unit or the residential complex in which it is located for all usual purposes by a tenant or members of his or her household. 2006, c. 17, s. 22.

Landlord not to harass, etc.

23 A landlord shall not harass, obstruct, coerce, threaten or interfere with a tenant. 2006, c. 17, s. 23.

Changing locks

24 A landlord shall not alter the locking system on a door giving entry to a rental unit or residential complex or cause the locking system to be altered during the tenant's occupancy of the rental unit without giving the tenant replacement keys. 2006, c. 17, s. 24.

Privacy

25 A landlord may enter a rental unit only in accordance with section 26 or 27. 2006, c. 17, s. 25.

Entry without notice

Entry without notice, emergency, consent

26 (1) A landlord may enter a rental unit at any time without written notice,

(a) in cases of emergency; or

(b) if the tenant consents to the entry at the time of entry. 2006, c. 17, s. 26 (1).

Same, housekeeping

(2) A landlord may enter a rental unit without written notice to clean it if the tenancy agreement requires the landlord to clean the rental unit at regular intervals and,

- (a) the landlord enters the unit at the times specified in the tenancy agreement; or
- (b) if no times are specified, the landlord enters the unit between the hours of 8 a.m. and 8 p.m. 2006, c. 17, s. 26 (2).

Entry to show rental unit to prospective tenants

(3) A landlord may enter the rental unit without written notice to show the unit to prospective tenants if,

- (a) the landlord and tenant have agreed that the tenancy will be terminated or one of them has given notice of termination to the other;
- (b) the landlord enters the unit between the hours of 8 a.m. and 8 p.m.; and
- (c) before entering, the landlord informs or makes a reasonable effort to inform the tenant of the intention to do so. 2006, c. 17, s. 26 (3).

Entry with notice

27 (1) A landlord may enter a rental unit in accordance with written notice given to the tenant at least 24 hours before the time of entry under the following circumstances:

1. To carry out a repair or replacement or do work in the rental unit.
2. To allow a potential mortgagee or insurer of the residential complex to view the rental unit.
3. To allow a person who holds a certificate of authorization within the meaning of the *Professional Engineers Act* or a certificate of practice within the meaning of the *Architects Act* or another qualified person to make a physical inspection of the rental unit to satisfy a requirement imposed under subsection 9 (4) of the *Condominium Act, 1998*.
4. To carry out an inspection of the rental unit, if,
 - i. the inspection is for the purpose of determining whether or not the rental unit is in a good state of repair and fit for habitation and complies with health, safety, housing and maintenance standards, consistent with the landlord's obligations under subsection 20 (1) or section 161, and
 - ii. it is reasonable to carry out the inspection.

5. For any other reasonable reason for entry specified in the tenancy agreement.
2006, c. 17, s. 27 (1).

Same

(2) A landlord or, with the written authorization of a landlord, a broker or salesperson registered under the *Trust in Real Estate Services Act, 2002*, may enter a rental unit in accordance with written notice given to the tenant at least 24 hours before the time of entry to allow a potential purchaser to view the rental unit. 2006, c. 17, s. 27 (2); 2020, c. 1, s. 36.

Contents of notice

(3) The written notice under subsection (1) or (2) shall specify the reason for entry, the day of entry and a time of entry between the hours of 8 a.m. and 8 p.m. 2006, c. 17, s. 27 (3).

▼ Section Amendments with date in force (d/m/y)

Entry by canvassers

28 No landlord shall restrict reasonable access to a residential complex by candidates for election to any office at the federal, provincial or municipal level, or their authorized representatives, if they are seeking access for the purpose of canvassing or distributing election material. 2006, c. 17, s. 28.

Tenant applications

29 (1) A tenant or former tenant of a rental unit may apply to the Board for any of the following orders:

1. An order determining that the landlord has breached an obligation under subsection 20 (1) or section 161.
2. An order determining that the landlord, superintendent or agent of the landlord has withheld the reasonable supply of any vital service, care service or food that it is the landlord's obligation to supply under the tenancy agreement or deliberately interfered with the reasonable supply of any vital service, care service or food.